Alabama Rules of Criminal Procedure

Rule 7. Release.

Rule 7.3. Conditions of release.

(a) Mandatory Conditions. Every order of release under this rule shall contain the conditions that the defendant:

(1) Appear to answer and to submit to the orders and process of the court having jurisdiction of the case;

(2) Refrain from committing any criminal offense;

(3) Not depart from the state without leave of court;

(4) Promptly notify the court of any change of address; and

(5) Provide an e-mail address and cellular-telephone number for the purpose of receiving court notices and other communications from the court by e-mail and text message, unless the defendant avers that he or she does not have an e-mail address or cellular-telephone number or is prohibited from the use of either due to the conditions of release, and promptly notify the court of any changes to the defendant's e-mail address or cellular-telephone number.

(b) ADDITIONAL CONDITIONS. An order of release may include any one or more of the following conditions reasonably necessary to secure a defendant's appearance:

(1) Execution of an appearance bond in an amount specified by the court, either with or without requiring that the defendant deposit with the clerk security in an amount as required by the court;

(2) Execution of a secured appearance bond;

(3) Placing the defendant in the custody of a designated person or organization agreeing to supervise the defendant;

(4) Restrictions on the defendant's travel, associations, or place of abode during the period of release;

(5) Return to custody after specified hours; or

(6) Any other conditions which the court deems reasonably necessary.

[Amended 9-24-2026, eff. 10-1-2026.]

Committee Comments

Rule 7.3(a) provides mandatory conditions of release, which apply in every release order. Rule 7.3(b) allows the court the flexibility to fashion other conditions of release.

Note from the reporter of decisions: The order amending Rule 7.3(a) and Rule 34.5, Alabama Rules of Criminal Procedure, effective October 1, 2026, is published in that volume of *Alabama Reporter* that contains Alabama cases from __ So. 3d.